

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, July 24, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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26CV-00503	Susana Quintero vs Cal Valley Jack, Inc., et al.
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Motion to Compel Arbitration of Plaintiff's Individual Claims, and Stay Arbitration

Continued from July 16, 2026.

The motion to compel arbitration is GRANTED.

The request to stay this action is GRANTED.

When a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine: (1) whether the agreement exists, and (2) if any defense to its enforcement is raised, whether it is enforceable. The moving party bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. The party claiming a defense bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

The moving party “can meet its initial burden by attaching to the [motion] a copy of the arbitration agreement purporting to bear the [opposing party's] signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541.)

By attaching the arbitration agreement as Exhibit A, to the Declaration of Deborah Hood (See Defendant’s Notice of Errata filed July 2, 2026), with Plaintiff’s electronic signature, Defendant has established a prima facie case that an enforceable agreement to arbitrate exists. As a preliminary matter, this court finds the inadvertent omission of the agreement to the Declaration of Hood to not be prejudicial as Plaintiff’s counsel was in possession of the agreement prior to the filing of the instant motion.

Unless there is a dispute over authenticity, the mere recitation of the terms is sufficient for a party to move to compel arbitration. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) Although Plaintiff challenges the arbitration agreement on other grounds, she does not deny signing the agreement. As such, there is a prima facie case that an enforceable agreement to arbitrate exists.

This shifts the burden to Plaintiff to provide a defense to the agreement. Here, Plaintiff challenges the arbitration agreement as unenforceable as there was no meeting of the minds and as being unconscionable.

Plaintiff’s argument that there was no assent to the agreement is unpersuasive. Here, Plaintiff claims in opposition that she “did not read, speak, or fully understand English . . .” (Opp. 4:15-16) and cites to her declaration for support. However, the cited sections, Quintero Declaration, paragraphs 2, 4-10, do not support this claim. Paragraph 2 states Plaintiff’s primary language is Spanish and that she has “difficulty reading and comprehending English language.” (Quintero Decl., ¶ 2, 2:6-7.) Difficulty reading and comprehending English is not an inability to read, speak, or fully understand the language. Similarly, paragraphs 4-10, offer no support as they do not attest to Plaintiff’s inability to read, speak, or understand English. Further, as argued by Defendant, “Plaintiff does not state that she requested a Spanish translation and was denied. She does not state that she asked to take the document home and was refused. She does not state that she requested additional time and was denied. She does not state that anyone misrepresented the Agreement as something other than an arbitration agreement.” (Reply, 4:23-27.)

It is Plaintiff’s burden to provide a defense to the arbitration agreement by a preponderance of the evidence. Here, Plaintiff does not carry her burden regarding assent. Without evidence otherwise, as it is plain on its face that the document Plaintiff was signing was an arbitration agreement, which terms are apparent, she is deemed to assent to all its terms.

Plaintiff also challenges the arbitration agreement as unconscionable. Here, there are some aspects of procedural unconscionability. The arguments regarding Plaintiff’s primary language, which are addressed above, support a finding that there are some aspects of procedural unconscionability. As does the fact that the arbitration agreement may be viewed as a contract of adhesion.

However, a finding of procedural unconscionability “does not mean that the contract will not be enforced, but rather that the courts will scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided.” (*Baltazar v. Forever 21*,

***Inc.*, (2016) 62. Cal.4th 1237, 1244.) In other words, because procedural unconscionability has been found, the analysis turns on consideration of the substantive unconscionability prong. The substantive inquiry considers whether the overall bargain is overly harsh or unreasonably one sided. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.)**

Here, the terms of the arbitration agreement are not so harsh, unreasonable, or unfairly one sided as to render the agreement unconscionable. The arbitration agreement has the requisite modicum of bilaterality, is limited to Plaintiff's employment with Defendant, provides for a neutral arbitrator that must follow the law, provides adequate discovery, provides types of relief otherwise available in this court, and Defendant is to pay for costs unique to arbitration. The fact that the arbitration agreement contains a class, collective, or other representative action waiver does not render the arbitration agreement unconscionable.

This action is stayed pending arbitration.

An arbitration status hearing is set for Thursday, January 14, 2027, at 8:15 a.m. in Courtroom 8.

The court will sign the order lodged with the court on June 22, 2026.

26CV-03727

Francisco Corchado vs Claudia Corchado

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service on Respondent has been filed with the court.
